

22NWCV00707 22NWCV00707

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-04

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Case Number: 22NWCV00707 Hearing Date: August 4, 2026 Dept: R

#11

HERRERA, ET AL. v. AMERICAN

HONDA MOTOR CO, INC.

CASE

NO.: 22NWCV00707

HEARING: Tuesday, August 4, 2026, at 9:30 AM

Defendant AMERICAN HONDA MOTOR CO, INC.'s Motion to Seal
is DENIED.

Moving Party to give notice.

BACKGROUND

On August

12, 2022, Plaintiffs RENE HERRERA and RAQUEL HERRERA ("Plaintiffs") filed this
"lemon law" action against Defendants AMERICAN HONDA MOTOR CO., INC.
("Defendant") and DOES 1 through 10 inclusive.

On February

22, 2024, Plaintiffs filed the operative First Amended Complaint ("FAC").

Plaintiffs'

FAC asserts the following causes of action:

(1)

Violation

of Song-Beverly Act – Breach of Express Warranty;

(2)

Violation

of Song-Beverly Act – Breach of Implied Warranty; and

(3)

Fraudulent

Inducement – Concealment

On February

23, 2026, Defendant filed the instant motion to seal. The motion is unopposed.

MOTION TO FILE UNDER SEAL

Defendant

requests for the following document(s) be sealed:

(1)

Exhibit

G – portions of the transcript from the deposition of AHM's personal most qualified Robert Wayne Hall taken in a separate matter, entitled Arlene Rodriguez v. American Honda Motor Co., Inc.; Case No. CIVSB2134965 in San Bernardino County Superior Court ("Rodriguez"); and

(2)

Exhibit

H – a "Quality Improvement Sheet" report ("QIS report") that was produced during discovery in Rodriguez (collectively, "subject records"). (Williams Decl., ¶¶ 4, 5.)

"The

court may order that a record be filed under seal only if it expressly finds facts that establish: [¶] (1) There exists an overriding interest that overcomes the right of public access to the record; [¶] (2) The overriding interest supports sealing the record; [¶] (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; [¶] (4) The proposed sealing is narrowly tailored; and [¶] (5) No less

restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d).)

Defendant

argues that the records contain proprietary information that will affect Defendant’s ability to address customer complaints, compete with other manufacturers, and operate effectively for the benefit of itself, its customers, and the general public. Further, the subject records are subject to protective orders.

However,

Defendant does not explain how sealing the records is the least restrictive means of avoiding public disclosure. Indeed, Defendant merely cites *Overtok.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 498 wherein the court discussed the policy interest in sealing records. However, Defendants offers no argument as to how sealing the subject records is the least restrictive means of avoiding public disclosure.

Defendant’s

Motion to Seal is DENIED.